

IN THE COURT OF APPEAL (CIVIL DIVISION)
ON APPEAL FROM THE EMPLOYMENT APPEAL TRIBUNAL

BETWEEN:

DR SARAH THORNTON

Appellant

- and -

GLOBALTECH SOLUTIONS LTD

Respondent

APPELLANT'S SKELETON ARGUMENT

8 JANUARY 2025

References:

- (1) To the Core Bundle are in the form [CB/page]
- (2) To the ET Decision [2024] ET 2402847 are in the form [ET/para]

INTRODUCTION

1. This appeal raises important questions concerning the proper interpretation of the whistleblower protection provisions under Part IVA of the Employment Rights Act 1996 (ERA 1996), in particular:
 - (a) The threshold for establishing a qualifying disclosure under section 43B(1)(d) ERA 1996;
 - (b) The proper approach to assessing public interest following the Enterprise and Regulatory Reform Act 2013;
 - (c) The weight to be given to temporal proximity between protected disclosures and dismissal.
2. The Appellant was granted permission to appeal by Lady Justice Simler on 20 December 2024 [CB/15].

BACKGROUND AND RELEVANT FACTS

3. Dr Thornton is a distinguished polymer chemist who was employed by GlobalTech Solutions Ltd as Principal Research Scientist from March 2019 until her dismissal on 15 September 2024 [ET/5-8].
4. Between January and June 2024, Dr Thornton raised concerns regarding inadequacies in the handling of Class 3 chemical compounds at the facility:
 - (a) On 8 January 2024, she raised concerns verbally with her line manager regarding inadequate ventilation;
 - (b) On 22 February 2024, she escalated her concerns in writing to the Head of Research;
 - (c) On 15 March 2024, she presented documented evidence to the Health and Safety Committee;
 - (d) On 12 June 2024, Dr Thornton reported the matters to the Health and Safety Executive (HSE).
5. Within six weeks of the HSE report, GlobalTech announced a strategic restructuring. Dr Thornton was the only member of her team selected for redundancy [ET/42-45].

THE LEGAL FRAMEWORK

6. Section 43B(1) ERA 1996 provides that a qualifying disclosure is a disclosure of information which, in the reasonable belief of the worker, is made in the public interest and tends to show that health or safety is endangered.
7. Section 103A ERA 1996 provides that dismissal is automatically unfair if the principal reason is that the employee made a protected disclosure.

GROUND ONE: ERROR IN APPROACH TO QUALIFYING DISCLOSURE

9. The Employment Tribunal erred by requiring Dr Thornton to establish that a breach had actually occurred, rather than whether she reasonably believed such a breach was likely.
10. At [ET/78], the Tribunal stated: The Claimant has not demonstrated that the matters disclosed constituted information tending to show a breach. This formulation reveals the legal error.

GROUND TWO: ERROR IN APPROACH TO CAUSATION

12. The ET failed to give proper weight to the temporal proximity between Dr Thornton's protected disclosures and the commencement of the redundancy process.

13. As established in *Jesudason v Alder Hey* [2020] EWCA Civ 73, temporal proximity is a relevant factor in assessing causation.

GROUND THREE: ERROR IN APPROACH TO REDUNDANCY PROCESS

14. The ET erred in accepting GlobalTech's business justification without adequate scrutiny:

- (a) Dr Thornton was the only employee selected for redundancy from her team;
- (b) Two colleagues with less experience were retained;
- (c) The skills matrix scoring was not subject to meaningful cross-examination.

GROUND FOUR: ERROR IN APPROACH TO PUBLIC INTEREST

16. The ET's finding that Dr Thornton's disclosures were not made in the public interest was perverse. The concerns related to potential harm to multiple employees.

17. In *Chesterton Global Ltd v Nurmohamed* [2017] EWCA Civ 979, the Court held that the public interest test is satisfied where disclosure is in the interests of a group of workers.

CONCLUSION

18. The Appellant respectfully invites the Court to:

- (a) Allow the appeal;
- (b) Set aside the decisions of the ET and EAT;
- (c) Declare that the dismissal was automatically unfair under section 103A ERA 1996;
- (d) Remit the matter for determination of remedy.

REBECCA HAMILTON KC

MARCUS CHEN

Whitfield Chambers

Note: This is synthetic data created for training purposes only.